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Case Number: 25NNCV00456 Hearing Date: June 26, 2026 Dept: A

LOS ANGELES SUPERIOR COURT

NORTH CENTRAL DISTRICT - BURBANK

DEPARTMENT A

TENTATIVE RULING

JUNE 26, 2026

MOTION FOR SUMMARY ADJUDICATION

Los

Angeles Superior Court Case # 25NNCV00456

MP: Defendants The Vons Companies, Inc. and Happy

Apple Company

RP: Plaintiff Brenda

Ramos

NOTICE:

The Court

is requesting oral argument on the following issue: in light of Mexicali Rose v. Superior Court, *infra*, 1 Cal.4th 617, is the provided declaration and evidence sufficient such that a consumer can reasonably expect an insect inside of an apple, regardless of whether it was a Codling moth larva or something

else? If so, then has Plaintiff provided sufficient evidence to rebut the shifted burden on this issue to show a triable issue of material fact?

The tentative ruling will become the ruling of the court if no argument is received.

ALLEGATIONS:

Brenda

Ramos ("Plaintiff") alleges that on September 15, 2024, she purchased "Happy Apples" caramel apples from Defendants Albertsons Companies, Inc. ("Albertsons"), The Vons Companies, Inc. ("Vons"), and Happy Apple Company ("HAC"). She alleges she consumed the apples designed, manufactured, compounded, assembled, prepared, and sold by Defendants, but the caramel apples and their component ingredients were defective in design, manufacture, and warning, causing Plaintiff to consume an insect-infected apple. Plaintiff claims she experienced severe vomiting and diarrhea, which resulted in opening a pre-existing abdominal scar.

The

Complaint, filed January 23, 2025, alleges: (1) Strict Liability; (2) Negligence; (3) Breach of the Implied Warranty of Merchantability; (4) Breach of the Implied Warranty of Fitness for its Intended Purpose; (5) Negligent Misrepresentation; and (6) Breach of Express Warranty.

On April

16, 2025, Plaintiff dismissed without prejudice Albertsons only.

MOTION

ON CALENDAR:

On March

25, 2026, Defendants filed a Motion for Summary Adjudication. On June 5, 2026, Plaintiff filed an opposition. On June 15, 2026, HAC filed a reply.

LEGAL

STANDARD:

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) CCP § 437c(c) "requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

As to each claim as framed by the complaint, the defendant moving for summary judgment must satisfy the initial burden of proof by presenting facts to negate an essential element, or to establish a defense. (CCP § 437c(p)(2); Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1520.) Courts "liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party." (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.) Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

EVIDENTIARY OBJECTIONS:

With the reply,
Defendants submitted evidentiary objections. The Court rules as follows:

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Plaintiff's responsive/disputed facts to Defendants' Separate Statement on the ground that it relies on Plaintiff's counsel Isabel Shiganian's declaration statements. The evidence cited in Facts 21, 41-46, 51, 54, 75, 95-100, 105-108, 129, 149-154, 159-162, and 194-195 indeed rely solely on Ms. Shiganian's declaration statements, which are essentially comprised of legal arguments "disputing" defense expert Dr.

Willette M. Crawford's declaration statements.

The objections are sustained on the ground that they rely solely on Ms. Shiganian's statements (who is not a designated expert); however, the Court will still consider the legal arguments as presented in the opposition papers.

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Plaintiff's

Additional Material Facts ("AMF") in the Separate Statement: AMF 1, 2, and 4 on the ground they rely on the Complaint's allegations: While these AMFs rely in part on the unverified Complaint, they also rely in part on Plaintiff's deposition testimony and Eric Reidy's declaration (offered in support of HAC's motion). The objections are overruled.

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To

the extent HAC raises separate evidentiary objections to each of Plaintiff's AMF statements, the objections are overruled.

Objections to facts

stated in the separate statement are not proper. Rather, written objections must be made to specific evidence. (CRC Rule 3.1354(b).)

ANALYSIS:

Defendants move for summary adjudication on the First, Third, Fourth, Fifth, and Sixth Causes of Action on the following issues:

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Issue 1: On the

First Cause of Action for Strict Liability on the ground that the alleged defect in the candy apple underlying Plaintiff's claim for damages is the presence of Codling Moth larvae. Pursuant to *Mexicali Rose v. Superior Court* (1992) 1 Cal.4th 617, the presence of naturally occurring substances in a foodstuff, such as a worm in an apple, cannot support a cause of action based upon Strict Liability or Implied Warranty.

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Issue 2: On the Third

Cause of Action for Breach of the Implied Warranty of Merchantability on the same grounds as Issue 1.

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Issue 3: On the Fourth

Cause of Action for Breach of the Implied Warranty of Fitness for its Intended Purpose on the same grounds as Issue 1.

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Issue 4: On the Fifth

Cause of Action for Negligent Misrepresentation because the undisputed facts are that Plaintiff did not rely on any brand name, advertising, or written materials in purchasing the allegedly contaminated foodstuff.

· Issue 5: On the Sixth Cause of Action for Breach of

Express Warranty because Plaintiff has not identified any express warranty associated with the purchase of the allegedly contaminated foodstuff.

Defendants provide the following material facts in support of their motion:

Plaintiff alleges that on September

25, 2024, she purchased a caramel apple with the brand name “Happy Apples” at a Vons store located at 1769 E. Walnut Street, Pasadena. (Def.’s Fact 1-2.) The product was packaged and contained a single apple, the packaging was sealed and there was nothing wrong with the outside. (Id. at 3-4.) That same day, she went home, did not put the apple away, immediately opened the packaging, removed the apple, took one bite, and then started to hand the apple to her son Apollo when Apollo exclaimed there was something moving inside the apple.

(Id. at 5-9.) Plaintiff

then took photos and a video of the apple, immediately put it in a trash bag, and threw it away. (Id. at 10-11.)

Dr. Willette M. Crawford is a food safety scientist, provides her

qualifications as Defendants’ expert, and details the materials reviewed to form her opinions. (Id. at

12-19.) She did not examine a physical

specimen of the apple or organism as no such specimen was retained or produced by Plaintiff, but reviewed the photos and videos, wherein she opines that the organism depicted appears to consistent in size, coloration, and morphology with a Codling Moth larva (*Cydia Pomonella*), a well-document agricultural pest

historical associated with apples. (Id. at 20-21, 51.) "Dr. Crawford's opinions regarding consistency with codling moth larvae is offered to a reasonable degree of scientific certainty based on visual characteristics and known host associations, but is not intended as definitive taxonomic identification." (Id. at 22.) Dr. Crawford states that codling moth larvae are often called "apple worms" and are commonly referenced as one of the most prevalent internal apple pests worldwide, such that they are capable of infesting 20%-90% or more of fruit if left unmanaged, making some level of infestation impossible to avoid entirely. (Id. at 23-24, 26.)

Dr. Crawford states that codling moths lay eggs on or near developing apples and, after hatching, they bore into the apple often toward the core. (Id. at 30-31.) She states that the larvae burrow into fruit, through the blossom end, sides, or calyx end, where they eat the core and seeds. (Id. at 25.) Once inside the apple, larvae or internal infestation may not be externally visible, and the exterior of the fruit may remain intact and visually acceptable. (Id. at 32, 52.)

Dr. Crawford states that despite the use of modern Integrated Pest Management ("IPM") programs, codling moth pressure cannot be eliminated and that pest management is designed to reduce risk but not eliminate it entirely. (Id. at 28.) She states that even under well-managed commercial growing conditions, occasional internal infestation of apples may occur, particularly where larvae enter fruit early in development and remain concealed within the flesh. (Id. at 29.) She states that commercial apple production and processing rely on a combination of visual inspection, washing, brushing, sorting, and culling to reduce the presence of defective fruit, but these controls are designed to minimize risk but cannot guarantee absolute detection of internal pests. (Id. at 34-35, 38.) Dr. Crawford opines the detecting internal infestation would require destructive testing, such as cutting open each apple (rendering the product unseal-able and not to industry standard) or employing advanced imaging technologies that are not commercially feasible at scale, such that complete exclusion of internal insect presence in apples is not achievable without destroying the product itself. (Id. at 36-37, 39, 53.)

Dr. Crawford states that apples are a raw agricultural commodity at their core and that certain naturally occurring conditions, including internal pest presence, are recognized agricultural risks that cannot be completely eliminated through reasonable and accepted industry practices. (Id. at 40-41.) She opines that from a scientific and agricultural standpoint, internal insect presence in apples represents a naturally occurring condition, not an indicator of improper handling or processing per se. (Id. at 42.)

She states that caramel apples are produced using whole apples that are washed, handled, coated, and packaged. (Id. at 43.) She states the caramel-coating process does not involve cutting the apple open or exposing its internal structure nor is it a validated lethality or kill step for internal agricultural pests that may already be present within the apple. (Id. at 44-45.) She thus opines that the caramel apple manufacturing process does not inherently introduce internal insect contamination, nor does it guarantee elimination of pre-existing internal pests. (Id. at 46.) She opines that from a regulatory and enforcement standpoint, FDA guidance materials reflect practical limitations in agricultural production and inspection, rather than consumer acceptability standards; the FDA has acknowledged the presence of insect infestations, specifically codling moth larvae, and their associated damage to apple products as a natural and unavoidable defect that is considered extraneous filth; the FDA recognizes it is economically impractical to grow, harvest, or process raw agricultural products that are entirely free of certain non-hazardous, naturally occurring defects; and the FDA's recognition of such defects reflects enforcement practicality, not a determination that such defects are desirable or expected by consumers. (Id. at 47-50.) Thus, she opines that the condition described is consistent with a naturally occurring agricultural defect rather than a manufacturing-introduced hazard. (Id. at 54.)

Issue 1 includes Facts 1-54. Issue 2 includes Facts 55-108 and Issue 3 includes Facts 109-162, which are consistent with Facts 1-54 respectively.

Issue 4 relies on Facts 163-177. Facts 163-173 are consistent with Facts 1-11. Defendants also offer the following material facts. Plaintiff did not rely on the brand name in purchasing the apple. (Def.'s Fact 174.) She testified that she did not base her fruit

based on brands or labels since fruit is fruit such that the brand name did not mean anything to her. (Id. at 175-176.) She testified she had never seen any advertising by HAC prior to the purchase nor seen anything in writing from HAC. (Id. at 177.)

Issue 5 relies on Facts

178-195. Facts 178-192 are consistent

with Facts 163-177. Edward Reidy (HAC's

President) states that no warranty, statement, or written information was

provided to consumers regarding the absence of worms or codling moth larvae in

the HAC product because although HAC makes efforts to limit naturally occurring

contaminants such as codling moth larvae, including following standard food

safety and inspection practices, the presence of larvae cannot be eliminated in

a commercial context. (Def.'s Fact 193-195.)

A.

First

Cause of Action for Strict Liability (Issue 1); Third Cause of Action

for Breach

of the Implied Warranty of Merchantability (Issue 2); and Fourth Cause of Action

for Breach

of the Implied Warranty of Fitness for its Intended Purpose (Issue 3)

Defendants argue that Plaintiff cannot maintain causes

of action for Strict Liability, Breach of the Implied Warranty of

Merchantability, or Breach of the Implied Warranty of Fitness (Issues 1-3),

relying on *Mexicali Rose v. Superior Court* (1992) 1 Cal.4th 617. (See also *Ford v. Miller Meat Co.*

(1994) 28 Cal.App.4th 1196 [re bone fragment in ground beef].)

In *Mexicali Rose*, the

plaintiff was a customer of defendants' restaurant where he ordered a chicken

enchilada, sustained throat injuries when he swallowed a one-inch chicken bone

contained in the enchilada. (*Mexicali*

Rose, supra, 1 Cal.4th at 620.) He

brought an action for negligence, breach of implied warranty, and strict

liability. (Id.) The Supreme Court address the question

whether a restaurant keeper may be held liable for serving food containing

substances natural to the product that, when consumed by the patron, cause

injury. (Id.) The Court found that the "reasonable

expectation" test applied and concluded that the plaintiff may not state a

cause of action under the theories of strict liability or breach of the implied warranties of merchantability or fitness, but he may state a cause of action in negligence based on defendants' asserted failure to exercise due care in the preparation of the chicken enchilada. (Id. at 620-621.) The Court stated:

[T]he trend developing in courts recently considering the issue whether a plaintiff may recover for injuries caused by a natural or foreign substance can be summarized as follows: If the injury-producing substance is natural to the preparation of the food served, it can be said that it was reasonably expected by its very nature and the food cannot be determined to be unfit for human consumption or defective.[] Thus, a plaintiff in such a case has no cause of action in implied warranty or strict liability.[] The expectations of the consumer do not, however, negate a defendant's duty to exercise reasonable care in the preparation and service of the food. Therefore, if the presence of the natural substance is due to a defendant's failure to exercise due care in the preparation of the food, an injured plaintiff may state a cause of action in negligence. By contrast, if the substance is foreign to the food served, then a trier of fact additionally must determine whether its presence (i) could reasonably be expected by the average consumer and (ii) rendered the food unfit for human consumption or defective under the theories of the implied warranty of merchantability or strict liability.

As adopted in most of the preceding decisions, the "reasonable expectation" test differs from the foreign-natural rule of *Mix*, supra, 6 Cal.2d 674, in two important respects. First, whether bones or other injurious substances ought to be anticipated in a particular dish becomes a question for the trier of fact, unless as a matter of law the food was fit for consumption because the substance was natural to the food served. (See, e.g., *Morrison's Cafeteria*, supra, 431 So.2d 975, 978.) Second, and more important, this reasonable expectation test focuses not on the components of the dish, but on the final item sold to the consumer and the expectations that are engendered by the type of dish and the type of preparation used in making the dish. Thus, courts rejecting the exclusive application of the *Mix* foreign-natural test, which by definition bars a negligence claim, have frequently identified the failure to focus on food preparation and the consumer expectation that is created by processing or by the nature of the dish sold as the principal analytical

defect of the Mix rule. (See *Morrison's Cafeteria*, supra, 431 So.2d at p. 978.)

...

As noted above, we agree with defendants to the extent they reason that a restaurant patron cannot expect a chicken pie to be free of all bones. Such an expectation would be unreasonable and unrealistic to the ordinary consumer and would not conform to either federal or state health and safety standards.[] Moreover, as also discussed above, the implied warranties of merchantability and fitness are based on cases imposing liability for foreign objects in food (see, e.g., Cal. U. Com. Code, § 2314, Cal. Code Com. [see 23A West's Ann. Cal. U. Com. Code, supra, § 2314, p. 265]), and the Restatement Second of Torts, section 402A, comment h, emphasizes that the doctrine of strict liability applies in the limited situation arising when foreign objects or ingredients not characteristic of food cause harm. Under these guidelines, therefore, a reasonable plaintiff cannot expect a chicken enchilada always to be free of bones, and defendants owe no duty to provide a perfect enchilada.

(*Mexicali Rose*, supra,¹ Cal.4th 630–632 [footnotes omitted].)

Defendants argue that based on cases like *Mexicali Rose* (chicken enchilada with a chicken bone) and *Ford* (bone fragment in ground beef), Plaintiff's First, Third, and Fourth Causes of Action fail because the alleged defect in the candy apple was a codling moth larvae (or apple worm), which naturally occurs in apples. Defendants rely on Dr. Crawford's opinions identifying the pest as a codling moth larvae, that they are common and well-documented pests associated with apples, and that internal infestation is not externally detectable. (Def.'s Facts 51-53.) She opines that the condition described is consistent with a naturally occurring agricultural defect rather than a manufacturing-introduced hazard.

While Dr. Crawford provides her opinions based on observations through photographs and video of the organism in the apple, she states: "My opinion regarding consistency with codling moth larvae is offered to a reasonable degree of scientific certainty based on visual characteristics and known host associations, but is not intended as

definitive taxonomic identification.”

(Crawford Decl., ¶13.) She

provides a detailed explanation on the presence of codling moth larvae, their prevalence in apples, how they burrow in apples and are not externally visible, etc., but her statement in paragraph 13 raises a question of fact regarding whether the photographed organism is in fact and definitively a codling moth larvae. Defendants did not offer any

photographs/videos of the subject incident (which the Court recognizes was due to Plaintiff immediate disposal of the subject apple), nor did Dr. Crawford provide photographs of what a typical codling moth larvae looks like. (The Court notes that Plaintiff provided a photograph of what she states was the worm-like organism in the apple, but the photograph itself appears to be a tan-colored smudge, such that the Court cannot ascertain based on this photograph alone whether Dr. Crawford’s opinions and identification of the matter is in fact a codling moth larvae. [Opp. Evid., Ex. 5.]

Ultimately Dr. Crawford only

established that the insect is consistent with worm, but fails to opine whether it is also consistent with any other insect which would typically not be in apples. Likewise Dr. Crawford’s declaration is without any discussion that even if not a Codling moth, other similar insects are routinely found in apples.

Without first establishing the nature of the worm/larvae/insect, the Court finds that Defendants have not established their initial burden in summary adjudication on the First, Third, and Fourth Causes of Action and whether Mexicali Rose applies.

Following Dr. Crawford’s uncertain identification of the organism, she opines about the nature of codling moth larvae, their inevitable presence in a certain number of apples, etc., but such opinions/facts are not relevant without first establishing what the organism is. Only after Defendants establish that it was in fact a codling moth larvae can the Court assess whether a consumer can reasonably expect an apple to be free of codling moth larvae (as opposed to something completely foreign like a spider or some other type of pest not typically found in apples).

As

Defendants did not establish their initial burden in summary adjudication on Issues 1-3, the burden does not shift to Plaintiff to raise a triable issue of material fact.

The motion for summary adjudication is denied as to Issues 1-3 on the

First, Third, and Fourth Causes of Action.

B.

Fifth

Cause of Action for Negligent Misrepresentation (Issue 4)

The elements for negligent misrepresentation are: (1) a misrepresentation of a past or existing material fact; (2) without reasonable grounds for believing it to be true; (3) with intent to induce another's reliance on the fact misrepresented; (4) ignorance of the truth and justifiable reliance thereon by the party to whom the misrepresentation was directed; and (5) damages. (B.L.M. v. Sabo & Deitsch (1997) 55 Cal. App. 4th 823, 834.) Negligent misrepresentation, unlike fraud, does not require knowledge of falsity.

(Apollo Capital Fund, LLC v. Roth Capital Partners, LLC (2007) 158 Cal.App.4th 226, 243.)

In the Fifth Cause of Action,

Plaintiff alleges that Defendants made false, misleading, and inaccurate representations relating to the production, distribution, manufacturing, condition, sale, and representation of the caramel apple, which were intended to induce Plaintiff to enter into a transaction regarding the ability, option, or decision to purchase the caramel apple.

(Compl., ¶¶31-33.) She allege she justifiably relied and was injured by the misrepresentation because she was Defendants' customer and relied on their experience, skill, judgment, and due care. (Id., ¶34.)

At her

deposition, Plaintiff testified:

Q. Had you -- did you have a particular brand of candy apple in mind when you made that purchase on September 15th, 2024?

A. No, I don't --

Q. Go ahead.

A. -- base my fruit off brands or any labels or anything like that. I think, you know, fruit is fruit.

(Mot., Ex. A [Ramos
Depo. at 14:25-15:6].)

Q. But the brand name didn't mean anything
to you, did it?

A. It didn't, no.

Q. To you, essentially an apple is an
apple, right?

A. I mean, yes.

(Ramos Depo,
pp. 16:3-7.) She further testified:

Q. Had you ever seen any advertising by
Happy Apples prior to this purchase?

A. Never before, no.

Q. Ever seen anything in writing from the
Happy Apple Company about their products?

A. Never before, no.

(Ramos Depo., p. 21:3-8)

Defendants have established that
they did not make any misrepresentations to Plaintiff or that Plaintiff relied
on any misrepresentations when purchasing the caramel apple. As such, the burden shifts to Plaintiff to
raise a triable issue of material fact.

In opposition, Plaintiff argues
that while she did not select the product based on brand loyalty or
advertising, this does not establish that she placed no reliance whatsoever on
the product's packaging, appearance, or implicit representations of fitness. (Opp. at p.16.)

Plaintiff relies on *Hauter v.*

Zogarts (1975) 14 Cal.3d 104, which involved a golf training device sold in a container bearing the words “Completely Safe Ball Will Not Hit Player.” However, in that case, the plaintiff had read the printed instructions that accompanied the product and when swinging the club to hit the ball, the ball got caught under the cord of his club (which was part of the device), thus drawing the cord upwards and towards him on his follow-through.

In contrast, Plaintiff has not provided excerpts of her deposition testimony or a declaration stating that she read the package materials, that the package stated any misrepresentation regarding the quality of the caramel apple (or its contents), and that she relied on the packaging in purchasing the product. She argues that “if” the packaging contained quality representations, freshness claims or imagery inconsistent with the presence of live insects, then these representations could support her Negligent Misrepresentation and Express warranty claims. (Opp. at p.16.) However, the time for Plaintiff to raise such facts was at the time of her opposition.

As most, the Court only has a partial photograph of the caramel apple package, which merely states the “best by” date, the name of the product, a logo of a caramel apple on a stick, the weight of the product, and a notation to “Refrigerate After Purchase.” (See Opp. Evid. at Ex. 5.) This photograph does not provide any indication regarding the representations on quality, presence of live insects, etc. As such, Plaintiff has not raised a triable issue of material fact on Issue 4.

The motion for summary adjudication is granted as to Issue 4 on the Fifth Cause of Action.

C.

Sixth

Cause of Action for Breach of Express Warranty (Issue 5)

“An express warranty is a contractual promise from the seller that the goods conform to the promise. If they do not, the buyer is entitled to recover the difference between the value of the goods accepted by the buyer and the value of the goods had they been as warranted.” (Dagher v. Ford Motor Co. (2015) 238 Cal.App.4th 905, 928 [internal quotation marks omitted].)

In the Fifth Cause of Action, Plaintiff alleges that on September 15, 2024, Defendants sold Plaintiff multiple items, including the

caramel apple. (Compl., ¶37.) At the time of sale, Plaintiff asserts that she relied on Defendant's representations that described the caramel apple was of quality, fresh, merchantable, and healthy. (Id., ¶38.) She alleges she relied on Defendants' express warranty, but Defendants breached the express warranty because the caramel apple was not merchantable, of quality, or healthy because it was defective. (Id., ¶¶39-40.)

Defendants provide Mr. Reidy's declaration. He states: "The Happy Apple caramel apple product is sold without any express warranty being made to distributors, retailers or consumers regarding naturally occurring substances, such as stems, seeds or insects." (Reidy Decl., ¶2.) He states that HAC makes no statements in its advertising or other written materials for the caramel apple product regarding the lack of naturally occurring substances. (Id., ¶3.) He states: "No such warranty is offered because although the company makes efforts to limit naturally occurring contaminants such as Codling moth larvae, including following standard food safety and inspection practices, the presence of larvae cannot be eliminated in a commercial context." (Id., ¶4.)

Here, Defendants have established that they did not provide an express warranty for the caramel apple product as they did not provide any written contract/warranty/materials for the product.

The burden shifts to Plaintiff to raise a triable issue of material fact.

Plaintiff argues that a description of the goods creates an express warranty.

She argues that the "Happy Apples" brand name and product packaging, which she contends Defendants have not produced in full, constitute an affirmation of quality or description of the good sufficient to create an express warranty. (Opp. at p.17.) She relies on *Keith v. Buchanan* (1985) 173 Cal.App.3d 13, 20, arguing that the "use of an evocative brand name associated with wholesome food, combined with packaging depicting the product as ready to eat, may itself constitute a basis-of-the-bargain representation. (Id.)

The Keith

case involved a discussion of express warranties under Commercial Code, § 2313 and the Song-Beverly Act. With respect to section 2313,

In deciding whether a statement made by a seller constitutes an express warranty under this provision, the court must deal with three fundamental issues. First, the court must determine whether the seller's statement constitutes an "affirmation of fact or promise" or "description of the goods" under California Uniform Commercial Code section 2313, subdivision (1)(a) or (b), or whether it is rather "merely the seller's opinion or commendation of the goods" under section 2313, subdivision (2). Second, assuming the court finds the language used susceptible to creation of a warranty, it must then be determined whether the statement was "part of the basis of the bargain." Third, the court must determine whether the warranty was breached.

(Keith v. Buchanan (1985) 173 Cal.App.3d 13, 20.)

The Court

does not find that the discussion in Keith stands for the proposition set forth by Plaintiff in the opposition papers. Rather, Keith states that the express warranty must be a statement that constitutes an affirmation of fact or promise or a description of goods (as opposed to an opinion) and then whether the statement was part of the basis of the bargain.

Here,

Plaintiff has not pointed to any statement on the packaging or otherwise. Next, Plaintiff testified that she did not rely on any brand, advertising, or written material when purchasing the caramel apple such that she has not established that any such purported statements were the basis of the bargain. Finally, to the extent she argues that Defendants have not produced the packaging, this is not sufficient to avoid summary adjudication as Plaintiff admits that she threw away the packaging of the offending product nor has she sought a continuance pursuant to C.C.P. § 437c(h).

Plaintiff

has not raised a triable issue of material fact. As such, the motion for summary adjudication is granted as to Issue 5 on the Sixth Cause of Action.

RULING:

In the event a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Defendants

The Vons Companies, Inc. and Happy Apple Company's Motion for Summary Adjudication came on regularly for hearing on June 26, 2026 with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

The motion FOR SUMMARY ADJUDICATION IS DENIED as TO THE FIRST, THIRD, AND FOURTH CAUSES OF ACTION (ISSUES 1-3), AND GRANTED AS TO THE FIFTH AND SIXTH CAUSES OF ACTION (ISSUES 4-5).

DEFENDANT THE VONS COMPANIES,
INC. TO PROVIDE NOTICE.

IT IS SO ORDERED.